☒ **District Court** ☐ Denver Juvenile Court **Delta** County, Colorado Court Address: 501 Palmer Street, Suite 338, Delta, CO 81416	▲ **COURT USE ONLY** ▲
Petitioner: PETE McCARTHY, *v.* **Respondent:** SAMIRA M. VETTER, in her official capacity as Town Clerk of the Town of Paonia, Colorado.	**Case Number:** _____ **Division:** _____ **Courtroom:** _____
Attorney or Party Without Attorney (Name and Address): Pete McCarthy, 119½ Dorris Avenue, Paonia, CO 81428 Phone Number: (415) 623-9773 E-mail: petefromsf@gmail.com FAX Number: N/A Atty. Reg. #: *Pro Se*	

VERIFIED PETITION FOR JUDICIAL REVIEW PURSUANT TO C.R.C.P. 106(A)(4) AND FOR RELIEF IN THE NATURE OF MANDAMUS PURSUANT TO C.R.C.P. 106(A)(2)

Petitioner Pete McCarthy, appearing pro se, respectfully petitions this Court for judicial review of three successive rejections by the Town Clerk of citizen initiative petitions on the same subject and for an order compelling the Town Clerk to accept Petitioner's initiative for circulation. In support, Petitioner states:

PARTIES

1. Petitioner Pete McCarthy is a registered elector of the Town of Paonia, Colorado, residing at 119½ Dorris Avenue, Paonia, CO 81428. Petitioner is one of two designated representatives for the citizen initiative petitions at issue, pursuant to C.R.S. § 31-11-104(2).

2. Respondent Samira M. Vetter is the Town Clerk of the Town of Paonia, a statutory municipality organized under C.R.S. § 31-1-203, with offices at 214 Grand Avenue, Paonia, CO 81428. She is sued in her official capacity.

JURISDICTION AND VENUE

3. This Court has jurisdiction pursuant to C.R.C.P. 106(a)(4), which provides for judicial review where a governmental body or officer exercising judicial or quasi-judicial functions has exceeded its jurisdiction or abused its discretion.

4. This Court has jurisdiction pursuant to C.R.C.P. 106(a)(2), which provides for relief in the nature of mandamus to compel a governmental officer to perform a ministerial duty.

5. This Petition is timely. Under C.R.C.P. 106(b), this Petition must be filed within twenty-eight (28) days after the final action of the Respondent. The most recent final action by Respondent occurred on April 27, 2026 (the rejection letter date), and was transmitted electronically to Petitioner on April 28, 2026. This Petition is filed within twenty-eight (28) days of both dates.

6. Venue is proper in Delta County because the Town of Paonia is located in Delta County and the rejections at issue occurred there.

FACTUAL BACKGROUND

Statutory Framework

7. Under Article V, Section 1(9) of the Colorado Constitution, the people of every municipality have reserved the power to propose ordinances by initiative. Under C.R.S. § 31-11-104, that power may be exercised by the registered electors of any statutory municipality, including the Town of Paonia.

8. C.R.S. § 31-11-106(1) authorizes the town clerk to "review the petition section for compliance with this article." It further provides that the clerk "may reject a petition or a section of a petition on the grounds that the petition or a section of the petition does not propose municipal legislation pursuant to section 1(9) of article V of the state constitution." The Clerk's authority under this provision is narrow and ministerial: she may determine whether the petition proposes legislation. She may not adjudicate the constitutionality, enforceability, wisdom, or merit of the proposed ordinance.

9. C.R.S. § 31-11-106(3) requires the clerk to determine sufficiency "within five business days" of submission.

The First Petition and Rejection — April 3, 2026

10. On March 27, 2026, Petitioner submitted to Respondent a citizen initiative petition titled "An Initiated Ordinance of the People of the Town of Paonia, Colorado, Prohibiting Government Surveillance Cameras on Public Property and Providing for Enforcement" (the "First Petition"). The First Petition proposed a single legislative policy: prohibiting the Town from installing, operating, or maintaining surveillance cameras on public property, with exceptions for body-worn law-enforcement cameras, warrant-authorized cameras, and public-meeting cameras. (See **Exhibit A**.)

11. On April 3, 2026, Respondent rejected the First Petition by written letter signed in her official capacity. (See **Exhibit B**.) The letter cited six grounds: (a) violation of the single-subject requirement of Article V, § 1(5.5) of the Colorado Constitution; (b) conflict with the Enhance Law Enforcement Integrity Act (body-worn cameras); (c) the subject of "surveillance of public property" is an "administrative function" not within the scope of citizen-initiated legislation; (d) Sections 2 and 5 (relating to contracts) are "administrative matters"; (e) Section 6 (injunctive relief) is "a judicial function"; and (f) Section 7 (voter approval for amendment or repeal) is "invalid under Colorado law." The April 3 letter cites no Colorado caselaw for any ground.

12. On April 3, 2026, Petitioner McCarthy filed a written response with Respondent rebutting each of the six grounds and demanding acceptance of the First Petition within five business days. Respondent did not accept the First Petition.

The Second Petition and Rejection — April 13, 2026

13. Following the April 3 rejection, Petitioner narrowed the proposed ordinance to address each of the Clerk's stated concerns. The revised petition, titled "Paonia Surveillance Camera Prohibition Ordinance" (the "Second Petition"), removed disputed provisions and tightened the body-worn-camera exemption.

14. On April 6, 2026, Petitioner submitted the Second Petition to Respondent.

15. On April 13, 2026, Respondent rejected the Second Petition by written letter signed in her official capacity. (See **Exhibit C**.) Notably, in the April 13 letter, Respondent abandoned the framework of the April 3 rejection and substituted a new doctrinal label. The April 13 letter states that the proposed ordinance addresses "executive acts" rather than "administrative" matters:

> "Prohibiting the installation, operation, or maintenance of surveillance cameras on public property are purely executive acts, and thus, the proposed measure cannot be placed on the ballot."

16. The April 13 letter simultaneously asserts the inconsistent label that the petition is "administrative in nature." The letter offers no analytical framework distinguishing legislative, administrative, and executive functions and cites no Colorado caselaw.

The Third Petition and Rejection — April 27/28, 2026

17. On April 20, 2026, Petitioner submitted to Respondent a third version of the petition, titled "Surveillance Policy Ordinance" (the "Third Petition"). The Third Petition was reframed as a policy declaration limiting the Town's surveillance authority going forward, rather than as a prohibition on existing equipment.

18. By operation of C.R.S. § 31-11-106(3), Respondent's response to the Third Petition was due within five business days, no later than April 27, 2026.

19. On April 27, 2026, having received no response, Petitioner McCarthy sent Respondent a written demand citing the five-business-day deadline.

20. Respondent's rejection letter is dated April 27, 2026, but was not transmitted to Petitioner until April 28, 2026, after the demand. Respondent's transmittal email states: "I mailed the letters as per statute and forgot to send the email." (See **Exhibit D**.)

21. The April 27 rejection letter contains a facial defect: although the subject line of the letter identifies the rejected petition as "Surveillance Policy Ordinance," the body of the letter opens, "I received your submission of a Citizen Initiative Petition for **'Paonia Short-Term Lodging Policy'** on April 20, 2026." The Short-Term Lodging Policy is a separate, unrelated initiative submitted by other petitioners. The body's identification of the petition by name is incorrect on its face.

22. The April 27 rejection abandons both the "administrative function" framework of April 3 and the "executive acts" framework of April 13 and substitutes a third doctrinal label: "managerial and operational function." (See **Exhibit E**.) The letter states in full substantive part:

> "The subject of Surveillance on Public Property is a managerial and operational function of Town property, which is beyond the scope of citizen-initiated measures. Actions taken by a municipality to manage public spaces and rights-of-way, including monitoring and surveillance, are administrative in nature. The proposed ballot initiative seeks to control administrative actions by the Town, and the implementation of the proposal would require existing contractual obligations to be rescinded or modified. The formation, content, and amendment of contracts to which a Town is a party to further its policies are administrative matters, not suitable for an initiative."

23. The April 27 letter cites no Colorado caselaw.

Pattern of the Three Rejections

24. Across three rejections in twenty-four days, Respondent has invoked three distinct doctrinal labels — "administrative function," "purely executive acts," and "managerial and operational function" — to support the same ultimate conclusion: that surveillance policy is not subject to citizen initiative.

25. None of the three rejections cites a Colorado case that supports the legal framework Respondent invokes.

26. With each new rejection, Respondent shifted to a new theory rather than evaluating the revised petition text on the framework she had previously articulated. Petitioner's good-faith effort to address each ground of rejection produced no acceptance — only a new label.

FIRST CLAIM FOR RELIEF

Abuse of Discretion (C.R.C.P. 106(a)(4))

27. Petitioner incorporates all preceding paragraphs.

28. The Colorado Supreme Court has repeatedly held that the initiative power must be "liberally construed" in favor of the people's right to legislate. *Vagneur v. City of Aspen*, 295 P.3d 493 (Colo. 2013); *In re Title, Ballot Title and Submission Clause Pertaining to a Proposed Initiative*, 877 P.2d 321, 323 (Colo. 1994). Any doubt about whether a proposed initiative is legislative or administrative must be resolved in favor of the petitioners.

29. Under the test established in *City of Aurora v. Zwerdlinger*, 571 P.2d 1074 (Colo. 1977), and *Vagneur v. City of Aspen*, 295 P.3d 493 (Colo. 2013), an act is legislative — and thus subject to initiative — when it (a) creates permanent and general law, (b) declares a public policy, and (c) applies generally rather than merely implementing an existing policy in a particular case.

30. Each version of Petitioner's initiative satisfies all three elements of the *Zwerdlinger / Vagneur* test: it would create a permanent prohibition or limitation on government surveillance, declare a public policy concerning the relationship between government and citizens in public spaces, and apply generally to all Town departments, officers, and contractors.

31. The Colorado General Assembly has itself legislated on government surveillance technology, including SB 22-113 (regulating government use of facial recognition) and HB 24-1130 (governing biometric data collection, sale, and retention). If government surveillance policy is a proper subject of state legislation, it is also a proper subject of municipal legislation under Article V, § 1(9) and C.R.S. § 31-11-104.

32. Respondent's rejections constitute an abuse of discretion for the following independent reasons.

A. The "Administrative," "Executive," and "Managerial" Labels Are Wrong as a Matter of Law

33. None of Respondent's three doctrinal labels properly describes a permanent, generally applicable policy choice about whether the Town will engage in persistent video surveillance of its residents in public spaces.

34. Whether the Town will operate a continuous surveillance system in public parks, public rights-of-way, and at the door of every public meeting is precisely the kind of policy determination that the *Zwerdlinger / Vagneur* test reserves to the legislative function. It is not a managerial choice about how to operate equipment that has already been authorized; it is a policy choice about whether such equipment may be operated at all. Multiple Colorado statutory municipalities have addressed comparable policy questions through ordinance and citizen initiative, and the General Assembly has done so by statute.

35. Respondent's position, if correct, would mean the citizens of any Colorado statutory town can never legislate about government surveillance — even though the General Assembly itself legislates on this very subject. That outcome is incompatible with Article V, § 1(9), with C.R.S. § 31-11-104, and with the *Vagneur* liberal-construction mandate.

B. Each Specific Ground in the April 3 Letter Is Independently Erroneous

36. **Single subject (Ground 11(a)).** The First Petition addresses one subject — the prohibition of government surveillance cameras on public property. Definitions, exceptions, enforcement, contract voidness, severability, and effective-date provisions are standard structural components of any ordinance, not independent subjects. Article V, § 1(5.5) primarily governs statewide ballot measures; Respondent cites no authority applying it to reject a municipal initiative under § 31-11-106.

37. **Body-worn cameras (Ground 11(b)).** Section 4(a) of the First Petition exempted body-worn cameras. An exemption is the opposite of regulation. The First Petition did not modify, override, or conflict with the Enhance Law Enforcement Integrity Act; it carved that subject matter out entirely.

38. **Contracts (Ground 11(d)).** A provision voiding contracts that violate an ordinance is a standard legislative enforcement mechanism, found in countless Colorado municipal ordinances, not an independent administrative act.

39. **Injunctive relief (Ground 11(e)).** Creating a cause of action is a legislative act. Adjudicating it is judicial. Every ordinance with an enforcement mechanism creates some form of remedy invoked through the courts. Respondent's reasoning, if correct, would invalidate every enforcement provision in every Colorado municipal ordinance.

40. **Voter approval for amendment (Ground 11(f)).** Respondent cites no authority for the proposition that requiring voter approval to amend an initiated ordinance is invalid. Even if any such provision were invalid, the First Petition contained a severability clause, and §

31-11-106(1) authorizes the Clerk to reject "a petition *or a section* of a petition." Wholesale rejection on this ground was unnecessary and disproportionate.

C. The Shifting-Theories Pattern Is Itself an Abuse of Discretion

41. Respondent's invocation of three different doctrinal labels across three rejections, applied to substantially the same subject matter, is itself evidence of arbitrary decision-making. A proper application of § 31-11-106(1) requires a coherent legal framework consistently applied. Where, as here, the Clerk reaches the same conclusion (rejection) under three mutually inconsistent labels (administrative, executive, managerial), the conclusion is not the product of a reasoned application of law but of a predetermined outcome in search of a rationale.

42. The pattern further demonstrates that Petitioner's good-faith efforts to narrow and revise the petition in response to each rejection were treated as occasions to invent new grounds rather than as proper opportunities for the Clerk to reconsider. That is the inverse of what § 31-11-106(1)'s "may reject a petition *or a section* of a petition" language contemplates.

D. The April 27 Rejection Has Independent Procedural Defects

43. The April 27 letter rejects the Third Petition by reciting an opening sentence directed to a different petition entirely (the "Paonia Short-Term Lodging Policy"). On its face, the letter calls into question whether Respondent reviewed the Third Petition before rejecting it.

44. Respondent's electronic transmittal of the April 27 letter on April 28 — only after Petitioner McCarthy invoked the five-business-day statutory deadline in writing — and her contemporaneous statement that she "forgot to send the email," indicate that the rejection was not communicated to Petitioner within the period set by C.R.S. § 31-11-106(3) by ordinary means.

SECOND CLAIM FOR RELIEF

Mandamus (C.R.C.P. 106(a)(2))

45. Petitioner incorporates all preceding paragraphs.

46. The Town Clerk's duty to accept citizen initiative petitions that propose municipal legislation is a ministerial duty. The Clerk has no discretion to refuse a petition that proposes legislation on its face under the *Zwerdlinger / Vagneur* test.

47. The Third Petition proposes a permanent, generally applicable limitation on government surveillance of public property in the Town of Paonia. It satisfies the *Zwerdlinger / Vagneur* test for legislative action and is therefore within the scope of Article V, § 1(9) and C.R.S. § 31-11-104.

48. Respondent has refused to perform her ministerial duty by rejecting the Third Petition (and the First and Second Petitions before it).

49. Petitioner has no adequate remedy at law. Without judicial intervention, the Third Petition cannot proceed to signature collection, and the registered electors of Paonia cannot vote on the proposed ordinance.

50. Petitioner is entitled to an order in the nature of mandamus compelling Respondent to accept the Third Petition for circulation.

PRAYER FOR RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

A. Issue a Rule to Show Cause directing Respondent to appear and show cause why the relief requested should not be granted;

B. Declare that Respondent's rejections of April 3, 2026, April 13, 2026, and April 27, 2026 each constituted an abuse of discretion;

C. Declare that the Third Petition (and, in the alternative, the First and Second Petitions) propose municipal legislation within the meaning of Article V, § 1(9) of the Colorado Constitution and C.R.S. §§ 31-11-104 and 31-11-106;

D. Order Respondent to accept the Third Petition for circulation forthwith;

E. Award Petitioner his costs incurred in this action;

F. Grant such other and further relief as this Court deems just and proper.

EXHIBITS

Exhibit A — First Petition: "An Initiated Ordinance of the People of the Town of Paonia, Colorado, Prohibiting Government Surveillance Cameras on Public Property and Providing for Enforcement" (filed March 27, 2026)

Exhibit B — Town Clerk Rejection Letter (April 3, 2026)

Exhibit C — Town Clerk Rejection Letter (April 13, 2026), rejecting "Paonia Surveillance Camera Prohibition Ordinance"

Exhibit D — Email transmittal from Town Clerk (April 28, 2026) of the April 27 rejection letter

Exhibit E — Town Clerk Rejection Letter (April 27, 2026), rejecting "Surveillance Policy Ordinance"

Exhibit F — Petitioner McCarthy's April 3, 2026 written response to the Town Clerk demanding acceptance within five business days

VERIFICATION

I, Pete McCarthy, declare under penalty of perjury under the laws of the State of Colorado that the foregoing is true and correct to the best of my knowledge, information, and belief.

Date: _____

/s/ Pete McCarthy
Pete McCarthy, Pro Se
119½ Dorris Avenue
Paonia, CO 81428
petefromsf@gmail.com
(415) 623-9773

CERTIFICATE OF SERVICE

I certify that on _____ (date) a true and accurate copy of the foregoing **VERIFIED PETITION** and all exhibits were served on the other party(ies) by:

☐ Hand Delivery ☐ E-filed ☐ Faxed to this number: _____, or

☐ By placing it in the United States mail, postage pre-paid, and addressed to the following:

To:

Samira M. Vetter, Town Clerk
Town of Paonia
214 Grand Avenue
Paonia, CO 81428
SamiraV@townofpaonia.com

Clayton M. Buchner, Town Attorney
Town of Paonia
ClayB@townofpaonia.com

/s/ Pete McCarthy
Pete McCarthy